

23CV03885 Santa Barbara County Coalition for Responsible Cannabis, et al., v. Ceres Farms, LLC, et al

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-07-15

Motion: Motion of Defendant Valley Crest Farms, LLC, for Protective Order Regarding Inspection of Facility Inspection of Facility

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Case Number

23CV03885

Case Type

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Hearing Date / Time

Wed, 07/15/2026 - 10:00

Nature of Proceedings

Motion of Defendant Valley Crest Farms, LLC, for Protective Order Regarding Inspection of Facility Inspection of Facility

Tentative Ruling

For Plaintiffs Santa Barbara County Coalition for Responsible Cannabis, William Hahn, Danielle Dall'Armi, and Chonnie Bliss Jacobson: Robert A. Curtis, Aaron L. Ardnt, Foley Bezek Behle & Curtis LLP

For Defendant Valley Crest Farms, LLC: Patrick D. Toole, John P. Kinsey, Ethan E. Mora, Wanger Jones Helsley PC

For Defendants Ceres Farm LLC, Case Van Wingerden, Alex Van Wingerden, and the Van Wingerden Family Trust: Amy M. Steinfeld, Matthew L. Hoffer, Brownstein Hyatt Farber Schreck LLP

RULING

For all reasons stated herein, the motion of Defendant Valley Crest Farms, LLC, for protective order regarding inspection demand of its facility is granted in part. Plaintiff Santa Barbara County Coalition for Responsible Cannabis shall serve a second amended inspection demand containing the descriptive information set forth on page 8, lines 5 through 11 of its opposition, and may conduct an inspection within the parameters of this description. The inspection shall take place on a minimum of 7 days' notice. The parties shall comply with the regulations set forth in title 4 of the California Code of Regulations section 15042. Plaintiff shall be permitted to maintain the confidentiality of its inspection results. Information obtained by the inspection shall be maintained as confidential by Plaintiff as to any third parties. Defendant's motion is otherwise denied, and the parties shall otherwise follow the applicable procedures set forth in Code of Civil Procedure sections 2031.010 through 2031.060.

The 11/18/25 Pretrial Conference at 11:30 am is again confirmed; trial commences 11/19/26.

Background

This action commenced on September 7, 2023, by the filing of the class action complaint by Plaintiffs Santa Barbara County Coalition for Responsible Cannabis (the Coalition), William Hahn, Danielle Dall'Armi, and Chonnie Bliss Jacobson, against Defendants Ceres Farm LLC (Ceres Farm), Case Van Wingerden, Alex Van Wingerden, Valley Crest Farms LLC (Valley Crest) and the Van Wingerden Family Trust for: (1) private nuisance, (2) public nuisance, (3) violation of Business & Professions Code, section 17200, and (4) trespass.

As alleged in the complaint:

Plaintiffs Hahn and Dall'Armi are residents of Santa Barbara County and reside at 5950 Casitas Pass Rd, Carpinteria. (Compl., ¶ 8.) Plaintiff Jacobson resides at 6217 Casitas Pass Rd., Carpinteria. (Compl., ¶ 9.) Plaintiff Coalition is a California nonprofit that was formed in Santa Barbara and is a county-wide organization "that has recognized the need for a collective voice to educate the public and government leaders, protect our environment, and maintain our community legacy." (Compl., ¶ 10.)

Defendant Ceres Farm is an LLC with its principal place of business at 6030 Casita Pass Rd., Carpinteria. (Compl., ¶ 12.) Ceres Farm holds 17 provisional state cannabis licenses and is actively cultivating cannabis in vented greenhouses located at 6030 Casitas Pass Rd. (Ibid.)

Valley Crest is an LLC with its principal place of business at 5980 Casitas Pass Rd., Carpinteria. (Compl., ¶ 13.) Valley Crest holds 39 provisional state cannabis licenses and is actively cultivating cannabis in vented greenhouses located at 5980 Casitas Pass Rd. (Ibid.)

Defendants Case Van Wingerden, Alex Van Wingerden, and the Van Wingerden Family Trust (the Van Wingerden Defendants) are all alleged to be owners or operators of the land where the cannabis operations are taking place or that they controlled operations of either Ceres Farm or Valley Crest. (Compl., ¶¶ 14, 15, 16.)

The complaint alleges that the cannabis operations create noxious odors which can and should be controlled by carbon filtration systems. (Compl., ¶¶ 42-50.) However, Defendants instead utilize ineffective vapor-phase odor control technology that contains chemicals that are equally malodorous and potentially hazardous to human health. (Ibid.)

On November 8, 2023, Ceres Farm and the Wingerden Defendants answered the complaint with a general denial and 44 affirmative defenses.

On November 13, 2023, Valley Crest answered the complaint with a general denial and 33 affirmative defenses.

On October 18, 2024, Plaintiffs filed a Notice of Conditional Settlement with Ceres Farm and the Wingerden Defendants, purporting to settle the entire action as between those Defendants and Plaintiffs. The notice indicated that a request for dismissal would not be filed until on or after February 25, 2025.

On March 5, 2025, a hearing was held on Plaintiffs' motion for class certification. The Court's ruling included the following:

"1. Plaintiffs' Class is certified as to all claims for relief as set forth in Plaintiffs' Class Action Complaint, defined as follows:

"a. All owner-occupiers of real property located within one mile of Valley Crest's cannabis operations who purchased their property prior to January 19, 2016 (the 'Class').

"b. Plaintiffs William Hahn, Danielle Dall'Armi, and Chonnie Bliss Jacobson are certified and appointed as the representatives of the Class.

"c. Robert A. Curtis of the law firm Foley Bezek Behle & Curtis, LLP is appointed as class counsel.

"d. Robert A. Curtis shall prepare the 'Notice to the Class' and provide a copy of said Notice to counsel for Valley Crest for approval. Any disagreement that the parties are unable to work out can be brought to the Court at a Notice Approval Hearing set by the attorneys. Briefs no longer than 5 pages can be submitted 5 days prior to the Notice Approval Hearing." (Minute Order, entered March 5, 2025, as amended on March 20, 2025.)

On May 1, 2025, Defendant Valley Crest filed a motion to decertify this class. This decertification motion is pending and set for hearing on July 29, 2026.

On June 5, 2026, Defendant Valley Crest filed the motion at issue in this hearing for protective order regarding the Coalition's amended inspection demand (Inspection Demand) requesting that Valley Crest "allow Plaintiff, its consultants and attorneys access to Defendants' property and greenhouses located at 5980 Casitas Pass Road, Carpinteria, California. [¶] The inspections will occur on June 8, 2026 beginning at 10:00 a.m." (Toole Decl., Ex. B.)

Valley Crest argues that the Inspection Demand fails to meet the requirements of the Code of Civil Procedure, does not comply with certain regulations pertaining to non-employee visitors, invades Valley Crest's privacy interests, and is unreasonable as to time and scope. The Coalition opposes this motion, arguing that the identity of its non-testifying experts are protected by the work product doctrine and that it need not disclose them prior to the inspection despite the governing regulations, and that it has provided the necessary information pertaining to the Inspection Demand during meet and confer discussions. The Coalition requests that the Inspection Demand promptly move forward.

Analysis

(1) Standards for Protective Order

"When an inspection, copying, testing, or sampling of documents, tangible things, places, or electronically stored information has been demanded, the party to whom the demand has been directed, and any other party or affected person, may promptly move for a protective order." (Code Civ. Proc., § 2031.060, subd. (a).)

"The Court, for good cause shown, may make any order that justice requires to protect any party or other person from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense. This protective order may include, but is not limited to, one or more of the following directions: [¶] (1) That all or some of the items or categories of items in the demand need not be produced or made available at all. [¶] (2) That the time specified in Section 2031.260 to respond to the set of demands, or to a particular item or category in the set, be extended. [¶] (3) That the place of production be other than that specified in the demand. [¶] (4) That the inspection, copying, testing, or sampling be made only on specified terms and conditions. [¶] (5) That a trade secret or other confidential research, development, or commercial information not be disclosed, or be disclosed only to specified persons or only in a specified way. [¶] (6) That the items produced be sealed and thereafter opened only on order of the Court." (Code Civ. Proc., § 2031.060, subd. (b).)

(2) Contents of a Second Amended Inspection Demand

"A party may demand that any other party allow the party making the demand, or someone acting on the demanding party's behalf, to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect and to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it." (Code Civ. Proc., § 2031.010, subd. (d).)

"Each demand ... shall do all of the following: [¶] (1) Designate the documents, tangible things, land or other property, or electronically stored information to be inspected, copied, tested, or sampled either by specifically describing each individual item or by reasonably particularizing each category of item. [¶] (2) Specify a reasonable time for the inspection, copying, testing, or sampling that is at least 30 days after service of the demand [¶] (3) Specify a reasonable place for making the inspection, copying, testing, or sampling, and performing any related activity. [¶] [and] (4) Specify any inspection, copying, testing, sampling, or related activity that is being demanded, as well as the manner in which that activity will be performed, and whether that activity will permanently alter or destroy the item involved." (Code Civ. Proc., § 2031.030, subd. (c).)

The Coalition has informed Valley Crest during meet and confer discussions that "[Plaintiffs] intend to measure odor and terpene concentration using two different testing machines. One is hand held (identical or similar to a Nasal Ranger) and the other is a small portable scientific machine approximately 2.5 feet x 3 feet x 3 feet that will need to be plugged in ([Plaintiffs] will bring lengthy extension cords) and needs to run for approximately 90 minutes to properly sample terpene concentrations in the air – measurements will be taken in the greenhouse where the most mature plants are located and then again at a location of [Plaintiffs] choosing outside of the greenhouse(s) but on the property. No destructive testing will be done of any kind. No touching or handling of any plants will be done. [Plaintiffs] also intend to photograph all current odor control/mitigation systems." (Opp., p. 8, ll. 5-11; Curtis Decl., ¶ 7, Ex. E.) The Court finds this description complies with the requirements of the Code of Civil Procedure. (See Code Civ. Proc., § 2031.010, subd. (d); Code Civ. Proc., § 2031.030, subd. (c).) The Coalition may serve a second amended inspection demand containing this description. Thereafter, the Coalition may conduct an inspection consistent with this description.

(3) Regulations on Non-Employee Visitors of Cannabis Operations (Cannabis Regulations)

"Every person who conducts commercial cannabis activity shall obtain and maintain a valid license from the Department for each separate premises at which commercial cannabis activity is conducted." (Cal. Code Regs., tit. 4, § 15000.1, subd. (a).) "The licensee shall only conduct commercial cannabis activities authorized by the license and on the premises licensed for the activity." (Id., subd. (c).)

"(a) For a premises that is not open to the public, the licensee shall establish and implement an identification and sign-in/sign-out procedure for all persons accessing the premises, including authorized individuals, suppliers, and visitors.

"(b) Licensees shall ensure that only employees of the licensee and other authorized individuals access the licensed premises.

“(c) For the purpose of this section, ‘authorized individuals’ include outside vendors, contractors, or other individuals conducting business that requires access to the licensed premises.

“(d) An individual who enters the licensed premises and is not employed by the licensee shall be escorted by an employee of the licensee at all times while within the licensed premises.

“(e) A licensee shall maintain a record of all authorized individuals who are not employees of the licensee who enter the licensed premises. The record shall include the name of the individual, the company the individual works for, the reason the individual entered the licensed premises, the date, and the times the individual entered and exited the licensed premises. These records shall be made available to the Department immediately upon request.

“(f) A licensee shall not receive consideration or compensation for permitting an individual to enter the licensed premises.” (Cal. Code Regs., tit. 4, § 15042.)

(4) Work Product Doctrine

“(a) A writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances.

“(b) The work product of an attorney, other than a writing described in subdivision (a), is not discoverable unless the Court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.” (Code Civ. Proc., § 2018.030.)

“[S]ubdivision (a) of section 2018.030 describes what is known as ‘absolute’ work product protection, while subdivision (b) describes ‘qualified’ protection. ‘A writing that reflects an attorney’s impressions, conclusions, opinions, or legal research or theories is not discoverable under any circumstances.’ [Citation.] Any attorney work product that does not reflect counsel’s impressions, conclusions, opinions, or legal research or theories ‘is not discoverable unless the Court determines that denial of discovery will unfairly prejudice the party seeking discovery in preparing that party’s claim or defense or will result in an injustice.’ [Citation.]” (Southern California Edison Co. v. Superior Court (2024) 102 Cal.App.5th 573, 584 (Southern California Edison).)

“Courts have defined attorney work product as ‘the product of the attorney’s effort, research, and thought in the preparation of his client’s case. It includes the results of his own work, and the work of those employed by him or for him by his client, in investigating both the favorable and unfavorable aspects of the case, the information thus assembled, and the legal theories and plan of strategy developed by the attorney—all as reflected in interviews, statements, memoranda, correspondence, briefs, and any other writings reflecting the attorney’s ‘impressions, conclusions, opinions, or legal research or theories’ and in countless other tangible and intangible ways.’ ” (Southern California Edison, supra, 102 Cal.App.5th at pp. 584–585.)

“ ‘The work product privilege is held by the attorney, not the client.’ [Citation.]

An attorney seeking to invoke work product protection has the burden to show that materials are either absolute or qualified work product. [Citations.] If material is entitled to only qualified work product protection, the party seeking the material ‘has the burden of establishing that denial of disclosure will unfairly prejudice the party in preparing its claim or defense or will result in an injustice.’ [Citations.] A trial Court ‘may not require disclosure of information claimed to be ... [absolute] attorney work product’ to rule on the claim. [Citation.] However, a Court can require an in camera review of materials claimed to be protected as qualified work product where it is unable to determine the discoverability of those materials without such a review. [Citation.]” (Southern California Edison Co., supra, 102 Cal.App.5th at pp. 585–586.)

(5) Plaintiff Is Entitled to Conduct an Inspection but Must Comply with the Cannabis Regulations

“[T]he identity of [a non-testifying expert] [may] not reflect [an attorney’s] ‘impressions, conclusions, opinions, or legal research or theories.’ ... [if the attorney] has not offered any evidence the identification of this particular [expert] reveals anything about [the attorney’s] representation ... his strategy ... or his tactics in future actions. [Citation.] Certainly, as [the attorney] argues, there could be repercussions from the disclosure—for example, adversaries could retain [the expert] to create a conflict so [the attorney] could no longer use [the expert], and then attempt to discern from [the expert] the strategies [the attorney] might deploy—but these arguments do not transmute [the expert’s] identity into core work product entitled to absolute protection.

“However, these concerns, as well as [the attorney’s] fear that public disclosure would chill [the expert] and discourage other [experts] from consulting with [the attorney], may affect [the attorney’s] right to thoroughly prepare his case and investigate favorable and unfavorable aspects of the case, as well as to prevent ‘opposing counsel [from] taking undue advantage of [his] industry or efforts,’ thus implicating the qualified work product privilege. [Citation.] Accordingly, [the attorney] has made a foundational showing that identification of [the expert] may be entitled to qualified work product protection under section 2018.030, subdivision (b). [Citation.]” (Curtis v. Superior Court (2021) 62 Cal.App.5th 453, 473–474 (Curtis).)

The Coalition has the burden to establish work product protection. The declaration submitted by the Coalition’s counsel does not address why the work product doctrine should apply as absolute work product to the identities of the particular experts at issue in this context. (See Curtis Decl., ¶¶ 2-7.) It is insufficient to state the Coalition’s argued conclusion that the identity of non-testifying experts are always protected by the work product doctrine. (See Opp., p. 13, ll. 22-24.) The cases cited by the Coalition for this proposition do not make this statement of law. (See Opp., p. 13, ll. 24-28.) “A party asserting the privilege must ‘prove the preliminary facts to show that the privilege applies.’ ” (Citizens for Ceres v. Superior Court (2013) 217 Cal.App.4th 889, 911.) “An attorney seeking to invoke work product protection has the burden to show that materials are either absolute or qualified work product.” (Southern California Edison Co., supra, 102 Cal.App.5th at pp. 585.) The Court finds that the Coalition failed to carry its evidentiary burden on this issue although the identities of these expert could potentially be qualified work product. (See Curtis, supra, 62 Cal.App.5th at pp. 473–474.)

However, even assuming arguendo that the Coalition had carried its burden on the issue of work product pertaining to the identities of its experts, these identities would at most be protected as qualified work product. (See Curtis, supra, 62 Cal.App.5th at pp. 473–474.) The Court finds that Defendant Valley Crest has established that the Cannabis Regulations require that Defendant keep detailed records of non-employee visitors, including the name of the individual, the company the individual works for, the reason the individual entered the licensed premises, the date, and the times the individual entered and exited the licensed premises. (Cal. Code Regs., tit. 4, § 15042.) An individual who enters Defendant’s cannabis operation must also be escorted by an employee of Defendant while within the licensed premises. (Ibid.) Forcing Defendant in a state of non-compliance as to the Cannabis Regulations would result in an injustice. (Code Civ. Proc., § 2018.030, subd. (b).) The Court also notes that the Coalition is not required to conduct this inspection with its experts but is choosing to do so. The need for disclosure under these circumstances and compliance with the Cannabis Regulations outweigh the purposes served by qualified work product. (See Curtis, supra, 62 Cal.App.5th at p. 475.) Defendant Valley Crest has carried its burden on this issue. (Laubach Decl., ¶¶ 13-15; Valley Crest Memorandum, p. 8, ll. 13-28.)

For all these reasons, the Court finds that the parties must comply with the Cannabis Regulations prior to and during any inspection of Defendant Valley Crest’s licensed cannabis operations. (See Cal. Code Regs., tit. 4, § 15042.)

(6) Plaintiff Must Be Permitted to Maintain the Confidentiality of Its Inspection Results

Although the Court finds that the Cannabis Regulations must be followed, the Coalition and its consulting experts shall be permitted to maintain their inspection results as confidential from its adversaries in this litigation. The Court finds that the Coalition should be able to inspect the facility, conduct reasonable testing, and obtain confidential testing results, consistent with its inspection demand. The work generated by the inspection may be covered by the work product doctrine and may constitute absolute or qualified work product. (See Code Civ. Proc., § 2018.030.) “[R]eports prepared by an expert as a consultant are protected until the expert is designated as a witness. [Citation.] ... However, to the extent that said reports embrace counsel’s impressions and conclusions, the work-product doctrine gives absolute protection to that information.” (Armenta v. Superior Court (2002) 101 Cal.App.4th 525, 534.) While Valley Crest may require compliance with the Cannabis Regulations, it cannot condition the inspection on gaining access to the Coalition’s confidential inspection results or any

attorney work product. This work product protection may be waived, of course, if the Coalition decides to utilize some or all the inspection results in support of its litigation positions.

(7) The Inspection Must Be Treated as Confidential as to Third Parties

The Court finds that Valley Crest has raised a genuine issue of confidentiality and privacy. (Laubach Decl., ¶¶ 2-8.) To address this issue, the Court will require that the Coalition and its attorneys and experts treat information obtained by the inspection as confidential, and prevent disclosure to any third parties. The Coalition and inspecting parties shall not use the information obtained by the inspection for any purposes other than this litigation proceeding. They shall not disclose this information to any third parties. The Coalition shall provide its experts with a copy of this order prior to the inspection.

For all these reasons, the Court will grant in part Valley Crest's motion for protective order.

Judges

Judge Thomas Anderle

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